

PROFESSIONAL SERVICES AGREEMENT

THIS PROFESSIONAL SERVICES AGREEMENT, dated as of the later of two dates signed below (the "Effective Date"), is between B&M Marine Construction, Inc. located at 1211 S Military Trail #200 Deerfield Beach FL (the "Client") and E8 Productions, LLC, with mailing address at 1906 S. Ocean Blvd, Suite #410B, Myrtle Beach, SC 29577 (the "Consultant"). E8 Productions, LLC will perform the services (the "Services") and deliver the materials (the "Deliverables") specified in each signed Quote/Price Sheet (the "Quote") to Client, subject to and in accordance with all terms, conditions, and specifications set forth herein and in the attached Schedules A, B, and C (collectively, the "Agreement").

The parties agree as follows:

ARTICLE I: SERVICES

1.1 Services Provided by Consultant.

Client hereby engages Consultant as an independent contractor to provide the Services described in Schedule A. Consultant accepts such engagement. All Services shall be performed by Consultant in a professional and highly skilled manner, using Consultant's best efforts, and Consultant shall determine the method, details and means of performing the Services.

1.2 Status as Independent Contractor.

During the Term, Consultant shall act in the capacity as an independent contractor with respect to Client. Consultant shall be solely responsible for the manner in which the Services shall be performed.

1.3 Representations and Warranties.

Consultant represents that they are free to enter into this Agreement, and that this engagement does not violate the terms of any agreement between Consultant and any third party. Consultant warrants that the Services shall be performed in accordance with applicable law and industry standards.

1.4 Materials & Releases.

Consultant shall provide all materials, equipment, and production resources necessary to perform the Services under this Agreement. There shall be no separate or additional charges to the Client for such materials or equipment.

Client shall be responsible for securing any and all necessary location releases, appearance releases, or waivers required for individuals, businesses, or properties appearing in the Deliverables, unless otherwise expressly agreed in writing. Consultant may provide standard release forms and guidance upon request.

1.5 Ownership.

All right, title, and interest in and to the final Deliverables produced by Consultant pursuant to this Agreement - including, but not limited to, edited videos, creative assets, captions, scripts, metadata, and copywriting — shall vest exclusively in Client upon full and timely payment of all fees due under this Agreement.

Client shall also retain full ownership of all raw and original footage captured during the course of this engagement, including all unedited video files, audio recordings, b-roll, and source materials, whether or not they are ultimately included in the final Deliverables.

Additionally, any and all social media accounts, pages, profiles, usernames, channels, and related login credentials created, managed, or operated by Consultant on behalf of Client for the purpose of executing this Agreement shall be the sole and exclusive property of Client. Consultant shall promptly provide full administrative access and control to Client upon request and no later than the termination or expiration of this Agreement.

Notwithstanding the foregoing, Consultant shall retain a non-exclusive, royalty-free, worldwide, perpetual license to use the final Deliverables for promotional purposes, including inclusion in Consultant's portfolio, reels, case studies, and marketing materials, provided such use does not disclose any Confidential Information or portray Client in a negative or misleading light.

1.6 Delivery Timelines.

Consultant shall use commercially reasonable efforts to deliver edited content within the timelines agreed to during strategy calls or as otherwise communicated in writing. Delivery dates may vary based on the volume of footage, revision rounds, and unforeseen production factors. Consultant shall communicate any significant delays promptly.

1.7 Approval Process.

To ensure timely production and publishing of content, Client agrees to participate in a weekly approval process. Client shall review and provide feedback, edits, or approval within five (5) business days of submission. Failure to respond within this window may be deemed acceptance by Consultant, who may proceed with finalization and publication at their discretion.

1.9 Media Storage & Access.

Consultant shall provide and manage a dedicated media storage system for the duration of the Services. Details of this solution and associated access, cost, and retention policies are set forth in Section 6.20.

1.10 Strategic Advisory.

Consultant may, at its discretion, provide out-of-scope strategic advisory support upon request from Client. These services shall not be considered part of the core scope of work and shall only be provided if mutually agreed upon in writing, either through a separate agreement or an approved scope modification. Nothing in this section obligates either party to additional fees or deliverables unless expressly documented and signed by both parties.

1.11 Reporting & Analytics.

Consultant shall provide monthly analytics summaries related to content performance, audience engagement, and platform reach. The reporting format, metrics tracked, and delivery method shall be determined by Consultant, unless otherwise agreed in writing. Reports shall be presented during the final scheduled strategy or content call of each calendar month, unless rescheduled by mutual agreement.

ARTICLE II: TERM AND TERMINATION

2.1 Term.

This Agreement shall commence on the Effective Date and shall continue for a period of twelve months unless terminated earlier pursuant to Section 2.2.

2.2 Termination.

(a) For Cause. Either party may terminate this Agreement for material breach by providing sixty (60) days' written notice to the breaching party, specifying the nature of the breach in reasonable detail. If the breaching party cures the breach within the notice period, the Agreement shall continue in full force and effect.

(b) For Convenience. Client may terminate this Agreement for any reason by providing ninety (90) days' written notice to Consultant. In such event, Consultant shall be compensated for all Services satisfactorily rendered and approved expenses incurred through the effective date of termination, pro rata.

(c) Continuation of Services. In the event either party provides notice of termination within the first ninety (90) days from the Effective Date of this Agreement, Consultant shall continue to perform all Services and provide Deliverables in accordance with the terms of this Agreement for a minimum period of ninety (90) days from the date such notice is provided. Clients shall remain obligated to pay the full monthly Fees for the duration of this continuation period. This provision is intended to ensure continuity of service and an effective transition process during the early stages of engagement.

2.3 Termination for Non-Payment.

In addition to any other termination rights provided herein, Consultant may suspend Services or terminate this Agreement upon written notice if Client fails to make any undisputed payment due hereunder within ten (10) days after written notice of such failure. In such event, Client shall remain liable for all work performed and expenses incurred up to the termination date.

2.4 Renewal Discussion.

At least ninety (90) days prior to the end of the Term, the parties agree to engage in good faith discussions regarding potential renewal, extension, or revision of the scope of Services.

ARTICLE III: COMPENSATION

3.1 Charges for Services.

Client shall pay Consultant the fees specified in Schedule A. Consultant shall not be entitled to any other compensation or benefits.

3.2 Taxes.

Consultant acknowledges and agrees that, as an independent contractor, Consultant shall be solely responsible for the reporting, withholding, and payment of any and all federal, state, and local income taxes, self-employment taxes, payroll taxes, and any other taxes or assessments imposed by any governmental authority in connection with the compensation received under this Agreement. Consultant further agrees to indemnify and hold Client harmless from any and all liability arising from Consultant's failure to comply with applicable tax obligations.

ARTICLE IV: CONFIDENTIAL INFORMATION AND NON-DISCLOSURE

4.1 Confidential Information.

Confidential Information includes proprietary technology, strategies, business plans, client data, and all information marked or reasonably understood as confidential.

4.2 Exceptions.

Confidential Information does not include information that is publicly available, known to Consultant prior to disclosure, independently developed, or disclosed under legal obligation.

4.3 Non-Disclosure.

Consultant agrees to retain all Confidential Information in strict confidence and not disclose it to third parties without prior written consent.

4.4 Survival.

The confidentiality obligations shall survive termination of this Agreement.

ARTICLE V: INDEMNITY; LIMITATION OF LIABILITY; INSURANCE

5.1 Indemnification of Client.

Consultant shall indemnify, defend, and hold harmless Client and its officers, directors, employees, agents, and affiliates from and against any and all third-party claims, losses, liabilities, damages, expenses, and costs (including reasonable attorneys' fees) arising out of or relating to: (a) Consultant's gross negligence or willful misconduct in connection with the performance of the Services; or (b) any breach by Consultant of its obligations, representations, or warranties under this Agreement. Consultant shall not, however, be liable for indirect, incidental, consequential, or punitive damages, or for any losses arising from Client's misuse of the Deliverables.

5.2 Indemnification of Consultant.

Client shall indemnify, defend, and hold harmless Consultant and its officers, directors, employees, agents, and affiliates from and against any and all claims, liabilities, damages, losses, and expenses (including reasonable attorneys' fees) arising out of or relating to:

- (a) Client's use or misuse of the Deliverables;
- (b) any breach by Client of its obligations, representations, or warranties under this Agreement; or
- (c) any injury, loss, or damage to persons or property occurring during filming or production at a location arranged or owned by a third party (including laundromat operators).

For clarity, Consultant and Client shall not be held liable for any on-site incidents, claims, or damages occurring at any filming locations. Consultant shall obtain appearance or

location releases as reasonably required, and location owners shall be solely responsible for maintaining a safe environment and shall release and hold harmless both Consultant and Client from any and all liability associated with on-site filming.

5.3 Limitation of Liability.

Except in the case of gross negligence, willful misconduct, or breach of confidentiality, Consultant's total liability under this Agreement, whether in contract, tort, or otherwise, shall not exceed the total amount of fees actually paid to Consultant under this Agreement.

5.4 Exclusion of Certain Damages.

In no event shall either party be liable to the other for any indirect, incidental, consequential, special, exemplary, or punitive damages, including but not limited to lost profits, lost opportunities, business interruption, or loss of data, arising out of or in connection with this Agreement, even if advised of the possibility of such damages.

ARTICLE VI: E8 APP PLATFORM TERMS & LEGAL COMPLIANCE

6.1 E8 App Incorporation by Reference

Client acknowledges and agrees that access to and use of the E8 App platform, including all associated features, tools, workflows, services, and related systems (the "E8 App"), is subject to the E8 Productions, LLC Terms of Service, Privacy Policy, Acceptable Use Policy, Data Security Standards, and all other legal documents and policies governing the platform (collectively, the "E8 App Terms"), which are incorporated herein by reference and available at www.e8productions.com/legal or such other URL as Consultant may designate from time to time.

6.2 Compliance Obligations

Client agrees to comply with all E8 App Terms, including but not limited to:

- (a) **Account Security.** Client shall maintain the confidentiality of all login credentials, passwords, and authentication tokens and shall not share, disclose, or transfer account access to any unauthorized third party. Client is solely responsible for all activities conducted through Client's account.
- (b) **Acceptable Use.** Client shall not engage in any unauthorized access, data scraping, hacking, circumvention of platform security measures, or exploitation of platform features. Client shall not use the E8 App for any illegal, harmful, defamatory, or abusive purposes.

(c) **Data Protection.** Client agrees to comply with all data handling, retention, and security protocols outlined in the E8 App Privacy Policy and Data Security Standards. Client shall not attempt to access, modify, or delete data belonging to other users or third parties.

(d) **Content Standards.** Any content uploaded, submitted, or stored through the E8 App by Client shall comply with all applicable laws and shall not violate the intellectual property, privacy, or other rights of any third party.

(e) **Regulatory Compliance.** Client agrees to comply with all applicable federal, state, local, and international laws and regulations in Client's use of the E8 App, including but not limited to data privacy laws (such as CCPA, GDPR), export control regulations, and industry-specific compliance requirements.

6.3 Data Ownership, Storage & Confidentiality

(a) **Client Data Ownership.** Client retains full ownership of all data, files, creative assets, credentials, and information provided to or generated through the E8 App platform. Consultant shall not claim ownership of or exploit Client data for any purpose other than performing Services under this Agreement.

(b) **Data Storage & Access.** Consultant shall maintain industry-standard security measures to protect Client data stored on the E8 App, including encryption, access controls, and regular security audits. Client grants Consultant a limited license to store, access, and process Client data solely for the purpose of performing Services and providing platform functionality.

(c) **Data Retention.** Upon termination or expiration of this Agreement, Consultant shall retain Client data in secure storage for a period of thirty (30) days to allow Client to retrieve files. After such period, Consultant may delete or archive Client data unless otherwise agreed in writing. Client is responsible for maintaining backups of all critical data.

(d) **Data Security Responsibility.** While Consultant shall use commercially reasonable efforts to secure Client data, Client assumes all risk associated with platform use, including any unauthorized access resulting from Client's failure to maintain confidentiality of login credentials, negligent security practices, or breach of acceptable use policies.

(e) **Third-Party Data Processors.** The E8 App may utilize third-party data processors, cloud hosting providers, or service vendors for data storage and management. Consultant

shall ensure all third parties comply with applicable data protection standards and confidentiality obligations.

6.4 Intellectual Property Rights

(a) **E8 App Ownership.** All E8 App software, platform infrastructure, features, interface design, algorithms, code, systems, workflows, documentation, and proprietary materials are and shall remain the exclusive property of E8 Productions, LLC and its licensors. E8 Productions, LLC reserves all rights not expressly granted herein.

(b) **Limited License Grant.** Client is granted a non-exclusive, limited, revocable, non-transferable license to access and use the E8 App solely for the purpose of performing the Services outlined in this Agreement and receiving Deliverables. This license terminates immediately upon termination or expiration of this Agreement.

(c) **Restrictions on Use.** Client shall not: (i) reverse-engineer, decompile, disassemble, or attempt to derive the source code or underlying architecture of the E8 App; (ii) reproduce, copy, modify, or create derivative works based on the E8 App; (iii) remove, alter, or obscure any proprietary notices, labels, or marks on the E8 App; (iv) rent, lease, loan, or sublicense the E8 App to any third party; or (v) use the E8 App for any purpose other than as authorized herein.

(d) **Feedback & Suggestions.** Any feedback, suggestions, or recommendations Client provides regarding the E8 App shall become the sole property of Consultant and may be used by Consultant to improve, modify, or enhance the platform without compensation or attribution to Client.

6.5 Platform Features, Functionality & Updates

(a) **Feature Availability.** Consultant shall use reasonable efforts to maintain all core features and functionality of the E8 App, including content approval workflows, analytics dashboards, scheduling tools, and reporting capabilities. However, Consultant makes no guarantee that specific features will remain available indefinitely.

(b) **Platform Modifications.** Consultant reserves the right, at its sole discretion, to modify, update, enhance, replace, discontinue, or remove any feature, functionality, tool, or service within the E8 App at any time, without notice or liability. Consultant shall use reasonable efforts to provide advance notice (minimum 14 days) for material changes that may negatively impact Client's use of the platform.

(c) **Updates & Maintenance.** Consultant shall perform routine maintenance, security updates, and system upgrades as necessary to maintain platform stability and security. Maintenance windows may result in temporary platform unavailability. Consultant shall

use reasonable efforts to schedule maintenance during off-hours and to provide advance notice when possible.

(d) No Obligation to Develop New Features. Consultant is not obligated to develop, add, or implement new features or functionality based on Client requests. Any such requests shall be evaluated at Consultant's sole discretion and may require a separate change order or service agreement.

6.6 Platform Availability & Performance

(a) Service Level. While Consultant shall use reasonable efforts to maintain platform availability, Consultant makes no guarantee of uninterrupted or error-free service. Client acknowledges that internet-based platforms may experience downtime due to maintenance, technical issues, hosting provider failures, or other circumstances.

(b) No Liability for Outages. Consultant shall not be liable for any service interruptions, platform unavailability, data loss, or performance degradation due to: (i) scheduled or unscheduled maintenance; (ii) third-party service provider failures; (iii) internet connectivity issues; (iv) software bugs or platform errors; (v) forces beyond Consultant's reasonable control; or (vi) Client's failure to maintain adequate equipment or connectivity.

(c) Performance Standards. Consultant does not warrant any specific uptime percentage, page load speed, or performance metrics for the E8 App. Consultant shall not be liable for delays in content delivery, reporting generation, or data processing if such delays result from platform limitations or technical constraints.

6.7 Social Media Account Integration

(a) Account Management. Client shall grant Consultant full administrative access to all social media accounts (Instagram, Facebook, YouTube, LinkedIn, TikTok, and other platforms) created or managed for Client through the E8 App. Client shall maintain sole ownership of all social media accounts and shall not revoke Consultant's access without prior written notice.

(b) Platform Compliance. Client acknowledges that all social media accounts are subject to the terms of service, community standards, and policies of the respective platform owners (Meta, Google, etc.). Consultant shall not be liable for account suspensions, content removal, or policy violations imposed by third-party platforms.

(c) Credential Management. Consultant shall store and manage all social media account credentials through the E8 App with industry-standard security practices. Client shall not

disclose account credentials to unauthorized third parties, as this may compromise platform security and account integrity.

6.8 Analytics, Reporting & Data Accuracy

(a) **Data Source.** All analytics data, performance metrics, and reporting provided through the E8 App are sourced from third-party platforms (Meta, Google Analytics, YouTube, etc.) and reflect information available through those platforms' APIs.

(b) **Data Accuracy.** Consultant makes no guarantee regarding the accuracy, completeness, or timeliness of analytics data. Third-party platforms may experience API delays, data inconsistencies, or retrospective corrections that could affect reported metrics. Client shall not rely solely on E8 App analytics for critical business decisions without independently verifying data through platform native analytics tools.

(c) **Reporting Limitations.** Some analytics features, historical data, or detailed breakdowns may not be available through the E8 App due to platform API limitations or data retention policies. Consultant shall use reasonable efforts to provide available data but shall not be liable for gaps in reporting due to third-party limitations.

6.9 Third-Party Integrations & Service Providers

(a) **Third-Party Services.** The E8 App may integrate with or utilize third-party platforms, services, APIs, and software (such as social media platforms, analytics providers, payment processors, cloud hosting providers, or communication tools). Client's use of such integrations is subject to the terms and conditions of the respective third-party service providers.

(b) **No Control Over Third Parties.** Consultant has no control over third-party service providers and shall not be responsible for: (i) changes to third-party terms of service or policies; (ii) discontinuation or modification of third-party services; (iii) data breaches or security incidents at third-party providers; (iv) third-party service outages or performance issues; or (v) third-party platform policy violations or account suspensions.

(c) **Payment Processing.** If the E8 App utilizes third-party payment processors (such as Stripe), Client's payment information shall be subject to the payment processor's terms of service and privacy policy. Consultant shall not have access to or store Client's full payment card information.

6.10 Privacy & Data Protection

(a) **Privacy Policy.** Client's use of the E8 App is governed by the E8 Productions, LLC Privacy Policy, available at www.e8productions.com/legal, which explains how

Consultant collects, uses, stores, and protects Client data, including personal information, account details, files, and usage statistics.

(b) CCPA & GDPR Compliance. If Client is located in California or any jurisdiction subject to the California Consumer Privacy Act (CCPA), General Data Protection Regulation (GDPR), or similar privacy laws, Client shall comply with all requirements under such laws and shall ensure that Client's data collection and use comply with applicable regulations.

(c) Data Subject Rights. To the extent applicable, Client shall have the right to: (i) access, review, and export Client data; (ii) request correction or deletion of inaccurate data; (iii) port data to another platform; and (iv) request information about data processing practices. Client may submit such requests to legal@e8productions.com.

(d) Sub-Processors. Consultant may utilize sub-processors or data processors to facilitate platform operations. A current list of sub-processors shall be available upon request. Consultant shall provide advance notice (minimum 14 days) of any material changes to sub-processors.

6.11 User-Generated Content & Uploads

(a) Content Standards. Client is solely responsible for all content uploaded, submitted, stored, or transmitted through the E8 App. Client represents and warrants that all such content complies with applicable laws and does not infringe the intellectual property, privacy, publicity, or other rights of any third party.

(b) Content License. By uploading content to the E8 App, Client grants Consultant a limited, non-exclusive license to store, process, display, and transmit such content solely for the purpose of providing Services and platform functionality.

(c) Content Removal. Consultant reserves the right to remove or disable access to any content that Consultant reasonably believes violates applicable law, infringes third-party rights, or violates the E8 App Acceptable Use Policy, without liability or compensation to Client.

6.12 Account Suspension & Termination

(a) Suspension Rights. Consultant may suspend or restrict Client's access to the E8 App at any time without prior notice if Consultant reasonably believes that: (i) Client has violated the E8 App Terms; (ii) Client's account poses a security risk; (iii) Client's account is engaged in fraudulent or illegal activity; or (iv) Client has breached this Agreement.

(b) Termination of Access. Upon termination or expiration of this Agreement, Client's access to the E8 App shall be suspended or revoked within five (5) business days. Consultant shall provide Client with reasonable notice and an opportunity to retrieve files and data, subject to Section 7.3(c).

(c) No Right to Reinstatement. Termination of E8 App access is final. Client shall have no right to reinstatement or recovery of platform access after termination, except as may be required by law.

6.13 Indemnification for Platform Violations

Client shall indemnify, defend, and hold harmless Consultant and its officers, directors, employees, agents, and affiliates from any and all third-party claims, damages, liabilities, costs, and expenses (including reasonable attorneys' fees) arising from: (a) Client's violation of the E8 App Terms; (b) Client's unauthorized or misuse of the E8 App; (c) Client's breach of security protocols or account access practices; (d) Client's infringement of third-party rights through content uploaded to the E8 App; or (e) any illegal or harmful conduct by Client through the platform.

6.14 Disclaimer of Warranties

The E8 App is provided "AS IS" and "AS AVAILABLE" without warranty of any kind, either express or implied. Consultant disclaims all warranties, including but not limited to merchantability, fitness for a particular purpose, non-infringement, and title. Consultant makes no warranty that the E8 App will meet Client's requirements, be error-free, secure, uninterrupted, or compatible with all systems or third-party services.

6.15 Limitation of Liability for Platform Use

To the maximum extent permitted by law, Consultant shall not be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages arising from Client's use of the E8 App, including but not limited to lost data, lost profits, business interruption, reputational harm, or loss of business opportunity, even if Consultant has been advised of the possibility of such damages. In no event shall Consultant's total liability for E8 App-related claims exceed the total fees paid by Client under this Agreement in the twelve (12) months preceding the claim.

6.16 E8 App License Terms

Client acknowledges that the E8 App is provided under a license, not a purchase. Consultant may modify, suspend, or discontinue the E8 App or any license granted hereunder at any time. Upon termination of this Agreement or suspension of license

rights, all rights to use the E8 App cease immediately, and Client shall destroy or delete all copies of any E8 App materials in Client's possession.

6.17 Support & Maintenance

Consultant shall provide reasonable support for E8 App technical issues during normal business hours (Monday–Friday, 9 AM–5 PM EST). Support requests may be submitted via email to support@e8productions.com. Consultant makes no guarantee regarding response time or resolution timeline for support issues. Premium or expedited support may be available for an additional fee, to be determined by mutual written agreement.

6.18 Amendments to E8 App Terms

Consultant reserves the right to modify or amend the E8 App Terms at any time. Client's continued use of the E8 App following any amendment constitutes acceptance of the amended terms. Consultant shall provide notice of material changes via email or through the E8 App platform. If Client does not agree with amended terms, Client's sole remedy is to terminate this Agreement in accordance with Article II.

ARTICLE VII: OTHER PROVISIONS

7.1 No Third-Party Beneficiaries.

This Agreement is entered into solely for the benefit of the parties hereto. Nothing herein, express or implied, shall confer upon any other person or entity any legal or equitable right, benefit, or remedy of any nature under or by reason of this Agreement.

7.2 Dispute Resolution.

Any dispute, controversy, or claim arising out of or relating to this Agreement, or the breach thereof, shall be resolved exclusively through litigation in a court of competent jurisdiction. The parties agree that the state and federal courts located in Broward County, Florida shall have exclusive jurisdiction and venue over any such disputes. Each party hereby irrevocably submits to the personal jurisdiction of such courts and waives any objection based on forum non conveniens or any other jurisdictional grounds. Each party shall bear its own legal costs and attorneys' fees unless otherwise awarded by the court.

7.3 Waiver.

No waiver of any provision of this Agreement shall be effective unless made in writing and signed by the waiving party. No waiver of any breach or default shall be deemed a waiver of any subsequent breach or default.

7.4 Severability.

If any provision of this Agreement is determined to be invalid, illegal, or unenforceable by a court of competent jurisdiction, the remaining provisions shall remain in full force and effect, and the invalid provision shall be interpreted or modified, if possible, so as to be valid and enforceable while preserving its intent.

7.5 Notice.

All notices, requests, consents, claims, demands, waivers, and other communications under this Agreement shall be in writing and shall be deemed duly given and effective: (a) when sent by email to the designated business email address of the receiving party, provided no bounce-back or failure notice is received; (b) when delivered personally; (c) when sent by a nationally recognized overnight courier with confirmation of delivery; or (d) when sent by certified or registered mail, return receipt requested, postage prepaid. Email shall be the primary and preferred method of notice. Each party shall designate one or more official email addresses for communication under this Agreement. Notices shall be sent to the following initial email addresses, or to such other address as either party may designate by written notice:

For Consultant: eric@e8productions.com and/or legal@e8productions.com

For Client: bbusteppebn-machine.com

7.6 Client Cooperation.

Client agrees to provide timely access to necessary personnel, locations, information, and approvals required for Consultant to perform the Services. Consultant shall not be held liable for delays in delivery of Services resulting from Client's failure to provide such cooperation.

7.7 Platform Access and Account Control.

Client shall provide Consultant with timely and sufficient access to all necessary platforms, tools, and social media accounts to perform the Services. Consultant shall not be liable for any delays caused by failure to provide or maintain such access. Consultant shall not be responsible for any content losses or disruptions resulting from third-party platform outages or policy changes.

7.8 Data Security.

Consultant agrees to take commercially reasonable measures to safeguard Client data, files, and access credentials, and to store all media assets in secure, access-controlled

environments. Consultant shall not share access credentials or proprietary materials with any unauthorized third party.

7.9 Publicity.

Consultant may include Client's name, logo, and publicly available Deliverables in its portfolio, marketing materials, and website to demonstrate past work and capabilities, unless otherwise instructed in writing by Client.

7.10 No Exclusivity.

This Agreement does not grant either party exclusivity. Consultant may provide similar services to other clients, provided that such services do not involve the unauthorized use or disclosure of Client's Confidential Information.

7.11 Independent Contractor.

Consultant is and shall remain an independent contractor in the performance of all services under this Agreement. Nothing in this Agreement shall be construed as creating an employer-employee relationship, partnership, joint venture, agency, or other legal association between the parties.

7.12 Assignment.

Neither this Agreement nor any of the rights, interests, or obligations hereunder shall be assigned or delegated by Consultant without the prior written consent of Client. Any unauthorized assignment shall be null and void.

7.13 Point of Contact.

Client shall designate and maintain a primary point of contact, individual, or internal team to serve as the Consultant's direct liaison for the duration of this Agreement. This designated person or group shall be responsible for providing feedback, approvals, scheduling support, and coordinating all communications related to the Services. Consultant shall not be responsible for any delays, miscommunications, or inconsistencies resulting from the absence of a clearly designated contact or from receiving conflicting direction from multiple Client representatives.

7.14 Non-Solicitation.

Each party agrees that, during the term of this Agreement and at all times thereafter, it shall not directly or indirectly solicit, engage, hire, or otherwise contract with any employee, contractor, subcontractor, or representative of the other party who was

involved in providing or receiving the Services under this Agreement, without the prior express written consent of the other party.

This non-solicitation obligation applies mutually and survives the termination or expiration of this Agreement in perpetuity. Any violation of this provision—whether by employment, contractual arrangement, or other form of engagement—without such written consent may, at the non-breaching party's discretion, result in monetary compensation equal to the fair market value of the services lost, or an amount otherwise agreed upon in writing between the parties.

7.15 Force Majeure.

Neither party shall be liable for delays or failure to perform under this Agreement due to events beyond its reasonable control, including but not limited to acts of God, natural disasters, war, terrorism, epidemics, labor disputes, or government restrictions. In such cases, performance timelines shall be extended accordingly.

7.16 Production Delays and Rescheduling.

Consultant shall not be held liable for delays in production or content delivery due to circumstances beyond its reasonable control, including travel delays, weather conditions, or scheduling conflicts. In such cases, both parties will work in good faith to reschedule affected production dates.

7.17 Subcontractors.

Consultant may engage qualified subcontractors or third-party vendors in the performance of Services, provided Consultant remains fully responsible for their performance and compliance with the terms of this Agreement. All subcontractors or vendors shall be engaged solely by Consultant, and nothing in this Agreement shall be construed to create any employment, contractual, or agency relationship between such parties and the Client. The Client shall have no liability, obligation, or responsibility with respect to any subcontractor or third party retained by Consultant.

7.18 Scope of Work Boundaries.

Consultant shall only be obligated to perform the Services expressly outlined in this Agreement and Schedule A. Any requests for work outside of the agreed scope shall require a separate written agreement and may be subject to additional fees at Consultant's standard rates. Consultant shall not be required to commence any out-of-scope work without written approval from Client.

7.19 Change Requests.

Any material changes to the scope, budget, deliverables, timeline, or Services must be requested in writing and mutually agreed upon through a signed Change Order or written amendment to this Agreement.

7.20 Transition Support.

In the event of termination, Consultant agrees to provide reasonable support in transferring access, files, and documentation necessary to ensure continuity. Such support shall not exceed eight (8) hours unless otherwise agreed and may be billed at Consultant's standard hourly rate beyond that limit.

7.21 Consultant Branding.

All rights in Consultant's name, logo, trademarks, and branding elements shall remain the exclusive property of Consultant. Nothing in this Agreement shall be construed to grant Client any license or rights to use Consultant's brand identity without prior written consent.

7.22 Brand Alignment.

Consultant reserves the right to decline participation in any project, partnership, or sponsorship that it reasonably believes could harm its professional reputation or conflict with its core values, brand image, or industry standards.

7.23 Use of AI Tools.

Consultant may utilize AI-based tools or platforms to support production, ideation, scripting, or analytics, provided that final content is reviewed and approved by human team members. All creative decisions and quality standards shall remain the responsibility of the Consultant.

7.24 Amendment.

This Agreement may only be amended, modified, or supplemented by a written instrument executed by both parties. Preliminary agreement on amendments may be made via email between authorized representatives of the parties; however, any such amendment shall not be effective unless and until it is subsequently documented in a formal written instrument and signed by both parties.

7.25 Governing Law and Venue.

This Agreement shall be governed by and construed in accordance with the laws of the State of Florida, without regard to its conflict of law principles. The parties agree that the exclusive venue for any dispute arising out of or related to this Agreement shall be the state or federal courts located in Broward County, Florida.

7.26 Counterparts.

This Agreement may be executed in two or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Execution and delivery of this Agreement by electronic means (including PDF or electronic signature) shall be deemed effective and binding.

7.27 Survival.

The provisions of this Agreement which by their nature should survive termination or expiration, including but not limited to confidentiality, indemnity, ownership, and dispute resolution provisions, shall so survive.

7.28 Headings and Interpretation.

The headings in this Agreement are for convenience only and shall not affect its interpretation. Any ambiguities shall not be construed against either party solely by reason of authorship.

7.29 Disclaimer of Warranties.

Consultant makes no guarantees regarding audience growth, revenue, or specific content performance. Except as expressly stated herein, all services and deliverables are provided "as is" and without warranties of any kind, either express or implied.

7.30 Entire Agreement.

This Agreement, together with any schedules, exhibits, or attachments hereto, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior and contemporaneous agreements, understandings, and representations, whether oral or written.

7.31 Authority to Execute.

Each party represents and warrants that the individual executing this Agreement on its behalf has full authority to bind such party to the terms of this Agreement.

7.32 No Waiver.

The failure of either party to enforce any right or provision of this Agreement shall not constitute a waiver of future enforcement of that right or provision.

SCHEDULES AND EXHIBITS

The following Schedules are incorporated into and form an integral part of this Agreement:

- **Schedule A – Statement of Work & Deliverables**
Outlines the services to be performed, number and type of deliverables, format, and publishing expectations.
- **Schedule B – Cost Breakdown**
Details the monthly fee.
- **Schedule C – Reporting & KPIs**
Defines performance metrics, cadence of analytics reviews, and any content growth benchmarks.

Each Schedule may be amended from time to time upon mutual written agreement, without requiring full renegotiation of this Agreement.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the Effective Date.

CLIENT:

Name: Matt Wood

Signature: [Signature]

Date: 8/10/2024

E8 PRODUCTIONS, LLC:

By: Eric Davis

Signature: 

Date: Aug. 10, 2026

SCHEDULE A – STATEMENT OF WORK & DELIVERABLES

This Schedule A is attached to and incorporated by reference in that certain Professional Services Agreement dated as of August 10th, 2026 by and between B&M Marine Construction, Inc and E8 Productions, LLC.

1. Scope of Services

E8 Productions, LLC shall provide content strategy, branded video production, post-production editing, distribution, analytics reporting, advisory services to the Client, in alignment with the content goals and brand initiatives of the B&M. Consultant shall serve as a strategic content partner to develop, capture, and distribute media that engages the community and supports business development.

2. Deliverables

Content Production & Management

- 15 social media videos + 100 edited photos per month: ideation, scripting, editing, multi-platform publishing, account management.
- 2x 8 hour shoot days per month, 1–2 crew on set. Unused days carry over; may split into 2x 4HR days at no extra charge.

Social Community Engagement

- 3x weekly uploads across all platforms (IG, FB, YouTube Shorts, LinkedIn), bi-weekly content calendar for approval, active comment/DM response, monthly performance reporting.

Analytics Reporting

- Monthly performance reports detailing platform engagement, reach, content and paid advertising outcomes. Reporting to be presented during the final strategy call of each calendar month (see Schedule C).

3. Client Responsibilities

- Provide timely access to locations, personnel, and branding assets, and social media accounts. (e.g. logos, product details, brand guidelines).
- Designate a primary point of contact for scheduling, approvals, and communication.

- Review and approve content within five (5) business days of submission to stay on production timeline.
- Ensure all necessary appearance/location waivers are signed and returned, unless otherwise agreed.

4. Turnaround Time

- Short-form content: Delivered within 7 business days after each shoot (unless otherwise agreed).
- Pictures: Delivered within 7 business days after all assets are received, schedule may vary depending on posting date.

5. Revision Policy

- Includes up to one (1) round of reasonable revisions per short form deliverable.
- Includes up to one (1) round of reasonable revisions per short form deliverable.
- Revisions must be requested within three (3) business days of initial posting day.

6. Platform Access

- Consultant will require administrative or editor-level access to all relevant social media and video platforms (e.g. YouTube, Instagram, Facebook, TikTok) to post, manage, and analyze performance of published content. Credentials shall be provided by Client prior to the first scheduled release date.

7. Ownership Reference

- All final content, raw footage, and associated files created by Consultant under this Schedule shall be the sole property of Client, subject to the marketing license rights granted to Consultant in the Agreement.

8. Content Delivery Method

- All content will be delivered via secure E8 App with access granted to Client's designated team members. Consultant will notify Client upon upload completion for each batch of deliverables.

SCHEDULE B – COST BREAKDOWN

This Schedule B is attached to and incorporated by reference in that certain Professional Services Agreement dated as of August 10th, 2026 by and between B&M Marine Construction, Inc and E8 Productions, LLC.

1. Monthly Service Fee

Client shall pay Consultant a monthly service fee of \$3,600. This fee covers all content strategy, filming, editing, publishing, and reporting services as described in Schedule A.

2. Additional Services

Any services requested by Client that fall outside the scope of the Deliverables described in Schedule A shall require a separate written agreement and may be subject to additional fees, which will be agreed upon in writing.

3. Payment Terms

Consultant shall invoice Client on a monthly basis through a designated billing platform, which may include E8 App and Stripe Billing Services. Invoices shall include the Monthly Service Fee, and any associated platform processing or technology fees.

All payments shall be enrolled in automatic billing (auto-pay) through the chosen invoicing platform. Invoices are due within five (5) business days of issuance.

Client agrees to be responsible for any credit card, ACH, or platform processing fees associated with the invoicing platform and advertising management, which may be included as separate line items on each invoice.

Consultant reserves the right to suspend services if payment is not received within ten (10) business days of the invoice due date, or if the auto-pay method fails without timely resolution.

4. Billing Schedule

Services commence on the Effective Date of this Agreement. The first invoice will be issued five (5) business days after the Effective Date. Subsequent invoices will be issued on the same day each calendar month as the Effective Date.

5. Fee Adjustments

The Monthly Service Fee and all specified pass-through expense caps outlined in this Schedule are fixed for the duration of the Agreement and shall not be subject to

adjustment unless mutually agreed to in writing by both parties. Consultant shall not propose or implement any fee increases during the Term of this Agreement.

6. Refund Policy

All fees paid to Consultant are non-refundable once the corresponding Services or Deliverables have been rendered, unless otherwise agreed in writing.

7. Proration

There shall be no proration of fees. The Monthly Service Fee and Meta & Google Ads Management budget shall be billed in full for any month during which Services are active, regardless of the number of days Services were performed in that month. Services commence on the Effective Date, and billing shall follow the schedule outlined in Section 5.

8. Confidentiality of Billing Terms

The financial terms and billing structure outlined in this Schedule shall be treated as Confidential Information and shall not be shared with any third party without the prior written consent of both parties, except as required by law.

9. Taxes and Withholding

All fees and reimbursements outlined in this Schedule shall be paid in full without withholding or offset, unless required by law. Client shall be responsible for any applicable sales, use, or similar taxes imposed by a governmental authority.

SCHEDULE C – REPORTING & KPIs

This Schedule C is attached to and incorporated by reference in that certain Professional Services Agreement dated as of August 10th, 2026 by and between B&M Marine Construction, Inc and E8 Productions, LLC.

1. Reporting Overview

Consultant shall provide Client with monthly reporting that includes performance metrics, audience engagement, and content insights related to all published media across Instagram, Facebook, YouTube Shorts, and LinkedIn. Reporting is intended to inform strategy, optimize content, and evaluate the effectiveness of ongoing campaigns and paid advertising efforts.

2. Reporting Method & Schedule

Consultant shall provide Client with monthly performance reports delivered via email and accessible through the E8 App. Reports shall include visual dashboards, spreadsheets, and platform-native analytics tracking both organic and paid performance. Reports will be provided on the fifth (5th) day of the following calendar month.

3. Key Performance Indicators (KPIs)

The following KPIs will be tracked and discussed on a monthly basis:

Organic Social Media:

- Instagram: Reach, Impressions, Engagement Rate, Follower Growth, Website Clicks
- Facebook: Reach, Impressions, Engagement Rate, Follower Growth, Website Clicks
- YouTube: Views, Average Watch Time, Engagement Rate, Subscriber Growth
- LinkedIn: Reach, Impressions, Engagement Rate, Follower Growth, Lead Clicks

Paid Advertising (if applicable):

- Click-Through Rate (CTR)
- Cost Per Click (CPC)
- Cost Per Lead or Conversion
- Return on Ad Spend (ROAS)
- Impressions and Reach
- Conversion Tracking (if applicable)

Content Performance:

- Video Views
- Comment and Direct Message Volume
- Content Calendar Adherence (3x weekly minimum uploads)

4. Business Impact Metrics

In addition to standard social media KPIs, Consultant shall track and discuss indirect business outcomes including:

- Website traffic attributed to social media
- Lead inquiries or contact form submissions
- Brand visibility and audience growth trends
- Seasonal or project-based campaign performance

5. Custom Reporting Requests

Client may request additional custom reporting or specific platform data as needed. Consultant will make reasonable efforts to accommodate such requests, provided they fall within the existing scope of Services.

6. Performance Context

Reporting shall focus on evaluating performance trends, content improvement, and audience growth over time. Consultant makes no guarantee of specific viewership, engagement, or conversion metrics and shall provide context for interpreting results based on platform algorithms, market trends, and industry standards.

7. Experimental Content

Consultant may recommend and produce experimental or trending content formats as part of the content strategy. Such efforts are intended to explore growth opportunities and audience engagement, and results may vary from standard benchmarks.